

Frequently Asked Questions

Fees, Home Reports, missives and the awkward contractual bits — written for buying and selling property in Scotland.

DRAFT — GENERAL INFORMATION, NOT LEGAL, TAX OR FINANCIAL ADVICE. Written for **Scotland**. Scots property law is a separate system from that of England and Wales: do not mix guidance between the two. Tax rates and thresholds change at least annually and **no figures are quoted here on purpose** — link to Revenue Scotland and mygov.scot rather than restating them. Have this checked by a Scottish solicitor and confirm every process statement against your own practice.

Fees and contracts

What does it cost to sell with upbss?

Our fee is a completion fee, payable at settlement — either a fixed amount or a percentage of the sale price, agreed with you in writing before we start. There is no upfront listing charge on our standard agreement. The fee is shown **in cash terms as well as any percentage**, and stated as inclusive or exclusive of VAT, before you commit.

What other costs should a seller expect?

- The **Home Report** — you must have one before marketing (see below)
- Your solicitor's fees for conveyancing and for concluding missives
- Discharge of any existing mortgage, and possible early repayment charges
- Removals

What is the difference between sole agency and sole selling rights?

The Estate Agents Act 1979 applies across the UK, including Scotland, and these terms have prescribed meanings. The difference is expensive:

Term	What it means for you
Sole agency	We are the only agent. A fee is due if we introduce the buyer. Find a buyer entirely yourself and normally no fee is due.
Sole selling rights	A fee is due even if you find the buyer yourself .
Multiple agency	Several agents compete; whoever introduces the buyer is paid. Usually a higher rate.

Any agent must explain which applies before you sign, and set it out in writing.

Can I change my mind after signing?

Usually yes. If you signed away from our office or online, you have a **14-day cancellation right** under the Consumer Contracts Regulations 2013, which apply throughout the UK. If you ask us to begin marketing within those 14 days and then cancel, you may owe a proportionate amount for work already done.

Do solicitors sell property in Scotland too?

Yes — and this is a real difference from England. Many Scottish solicitors act as estate agents, and in Edinburgh a large share of the market is advertised through the **Edinburgh Solicitors Property Centre (ESPC)**. Solicitor estate agents are regulated by the Law Society of Scotland. We will be straightforward with you about where your property will and will not be advertised.

Selling: the Home Report

What is a Home Report and do I need one?

Yes, in almost all cases. Since December 2008 a seller in Scotland must have a **Home Report** available before a property is put on the market. It has three parts:

Part	What it contains
Single Survey	A condition report and a valuation, prepared by a chartered surveyor. Includes an accessibility audit for people with particular needs.
Energy Report	The Energy Performance Certificate and recommendations for improving efficiency.
Property Questionnaire	Completed by you as seller: council tax band, parking, alterations, history of flooding, factoring arrangements and more.

You must make it available to a prospective buyer who requests it, normally **within 9 days**. Some properties are exempt — new-build, right-to-buy, certain seasonal or holiday properties, and some mixed-use — but assume you need one unless we confirm otherwise.

Why does the Home Report matter so much to the price?

Because buyers see the surveyor's valuation before they offer, and their lender will usually lend against that figure. In practice the Home Report valuation anchors the whole negotiation. That is very different from England, where a buyer commissions their own survey after an offer is accepted.

What does "offers over" actually mean?

It is a marketing convention: the property is advertised at a figure inviting offers above it, usually set in relation to the Home Report valuation. It is not a reserve and not a promise. In a strong market properties can go well above it; in a quieter one, at or below. We will tell you honestly which we expect, and we will not set an offers-over figure we cannot justify.

What is a closing date?

Where several buyers are interested, we set a deadline by which each must submit their best offer through their solicitor. The seller then chooses — and is not obliged to take the highest, since entry date and

conditions matter too. Buyers usually get one shot, so it is a sealed-bid process in all but name.

What documents should I get ready?

- Proof of identity and address, for anti-money-laundering checks
- Your Home Report, if already commissioned
- Your title deeds or title number from the Land Register of Scotland
- Planning permissions and building warrants, with completion certificates, for any alterations
- Guarantees for damp, timber, electrical work, windows or a new boiler
- **For a flat:** your factor's details, recent factoring statements, and any notices about common repairs
- Any new-build warranty, such as NHBC

Buying

What will buying cost me beyond the price?

Budget for: your deposit; **Land and Buildings Transaction Tax (LBTT)**, collected by **Revenue Scotland**; the **Additional Dwelling Supplement (ADS)** if this is not replacing your only home; your solicitor's fees and outlays; registration dues to Registers of Scotland; any mortgage arrangement fee; removals; and buildings insurance from the date of entry.

Deliberately no figures. LBTT bands, the ADS rate and first-time-buyer relief are set by the Scottish Parliament and change. Check revenue.scot for the current position and use the official calculator — do not rely on a figure printed on a website.

Do I need my own survey if there is a Home Report?

Often not, because the Single Survey is commissioned for the buyer's benefit and most lenders will accept it. If the property is unusual, has been substantially altered, or the Single Survey flags Category 3 repairs, it is worth commissioning your own more detailed inspection. Your solicitor will advise.

What does "noting interest" mean?

Your solicitor tells the selling agent formally that you are interested. It does not commit you to anything, but it means you should be told if a closing date is set. Without it you may simply miss the deadline.

How do you assess buyers?

We ask about position — cash, mortgage agreed in principle, or dependent on selling — and expect confirmation of funds. In Scotland an offer also states a proposed **date of entry** and any conditions, and those often matter as much as the number.

There is no leasehold in Scotland — so what should I check on a flat?

Correct: feudal tenure was abolished and residential long leases have largely been converted, so you own your property outright. For a flat, the questions are different from England's:

- **Real burdens** in the title — obligations and restrictions that run with the property, under the Title Conditions (Scotland) Act 2003.

- **Common repairs** — how the roof, stair and rainwater goods are shared. Where the title is silent, the **Tenement Management Scheme** under the Tenements (Scotland) Act 2004 fills the gap.
- **Your factor** — who manages the building, what they charge, and whether any major works have been agreed but not yet billed.
- **Any float or deposit** held by the factor, and how it is dealt with on sale.

There is no ground rent, no service charge in the English sense, and no lease to extend.

What is a property factor, and are they regulated?

A factor manages common parts of a building or estate. Factors must be on the **Scottish Property Factor Register** and must comply with the statutory **Code of Conduct** under the Property Factors (Scotland) Act 2011. If you have a dispute with a factor that you cannot resolve, it goes to the **First-tier Tribunal for Scotland (Housing and Property Chamber)**, not to the courts.

The legal process

Do I need a solicitor?

Yes. In Scotland the solicitor's role starts earlier and matters more than in England: your offer is made *by* your solicitor, in formal written terms. Instruct one before you start viewing seriously.

When does it become legally binding?

On the **conclusion of missives** — the exchange of formal letters between the two solicitors that forms the contract. Once missives are concluded, both parties are bound, and pulling out exposes you to a claim for damages.

This is the single biggest difference from England and Wales, where nothing binds until exchange of contracts. In Scotland commitment comes earlier, which means **gazumping is far less common** after missives conclude — but also that you must have your finance and your survey position sorted *before* your solicitor concludes on your behalf.

What is the date of entry?

The date, agreed in the missives, when the price is paid and you take possession — the Scottish equivalent of completion day. It is negotiated as part of the offer, not fixed afterwards.

Who registers the sale?

Registers of Scotland maintains the **Land Register of Scotland**, which has been progressively replacing the older Sasine Register. Your solicitor handles registration and pays the dues.

What happens after I submit an enquiry?

It goes to a named consultant, not a shared inbox. You will hear back within one working day, and we will tell you who is handling it and how to reach them directly.

Identity checks and regulation

Why do you need to see my passport?

Estate agency businesses across the UK are subject to the **Money Laundering Regulations 2017**. We must verify our clients' identity, and in some cases buyers', and establish source of funds. We cannot proceed without it. Records are held for five years.

Who regulates you, and what if I have a complaint?

We must belong to a government-approved redress scheme, and we are a member of [\[THE PROPERTY OMBUDSMAN / PROPERTY REDRESS SCHEME\]](#). Please raise any complaint with us first — our Complaints Procedure sets out the timescales. If we cannot resolve it you can refer it to the scheme free of charge. Free consumer advice in Scotland is available from **consumeradvice.scot** (Advice Direct Scotland).

Can I sell discreetly, without a board or a public listing?

Yes. We can market without a street address, without external photographs and without a board, releasing details only to vetted buyers. Note that you still need a Home Report available for anyone who requests it. It narrows the audience and usually costs time or price, so we will talk you through the trade-off first.

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